

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- x
JASMIN COLON,

Plaintiff,

-against-

Index. No.

Purchased _____

Plaintiff designates Kings County as the
place of trialThe basis of the venue is where the tort
arose and where plaintiffs resideTHE CITY OF NEW YORK; P. O. HECTOR
JUSTINICO, (TAX # [REDACTED]); and P. O. DAVID
MERCADO, (TAX # [REDACTED]); the individual defendants
sued in their individual and official capacities,Defendants.
----- xSUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiffs' attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 3, 2016

Steven E. Lynch, Esq.

*Attorney for Plaintiff*The Law Offices of Steven E. Lynch
233 Fifth Avenue, Suite 4A
New York, New York 10016
(718) 858-8737

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JASMIN COLON,

Index. No.

Plaintiff,

VERIFIED COMPLAINT

-against-

Basis of Venue occurrence of
incident: Broadway & Flushing
Avenue, Brooklyn, New York

THE CITY OF NEW YORK; P. O. HECTOR
JUSTINICO, (TAX # [REDACTED]); and P. O. DAVID
MERCADO, (TAX # [REDACTED]); the individual defendants
sued in their individual and official capacities,

Defendants.

----- X

JASMIN COLON, by her attorney, Steven E. Lynch, Esq., for her complaint alleges as
follows:

1. This is a civil rights, common law, and tort action in which Plaintiff
Jasmin Colon seeks relief for the violation of her rights secured by the laws of the State of New
York, New York State Constitution, 42 U.S.C. § 1983; and Fourth, Sixth, and Fourteenth
Amendments to the United States Constitution.

2. Plaintiff's claims arise from an incident that occurred on or about March
24, 2015. During the incident, the City of New York, P. O. Hector Justinico and P. O. David
Mercado of the New York City Police Department ("NYPD") subjected Plaintiff to, among other
things, unlawful search and seizure, false arrest, false imprisonment, malicious prosecution,
fabricated evidence, the retention, supervision, training and instruction of incompetent and unfit
employees, and respondeat superior liability.

3. Plaintiff seeks compensatory and punitive damages from the individual
defendants, compensatory damages from the municipal defendant, declaratory relief, an award of

costs, attorney's fees pursuant to 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

4. Within ninety (90) days of the incident alleged in this complaint, plaintiff served upon Defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than thirty (30) days have elapsed since plaintiff's demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

6. This action is being commenced within one year and ninety days of the date of the occurrence herein.

7. A 50-h Hearing was conducted on November 18, 2015.

8. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State of New York, Kings County, and because the amount in recovery exceeds the jurisdictional levels of all lower courts.

PARTIES

9. Plaintiff Jasmin Colon is a Hispanic resident of the State of New York, and currently resides in Kings County.

10. At all times alleged herein, Defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

11. At all times alleged herein, Defendants P. O. Hector Justinico and P. O. David Mercado were New York City Police Officers employed with the 79th Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

12. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

13. On March 24, 2015, at approximately 11:00 p.m., at and in the vicinity of Broadway and Flushing Avenue, Brooklyn, New York, defendants P. O. Hector Justinico, (TAX # [REDACTED]), and P. O. David Mercado, (TAX # [REDACTED]), unlawfully arrested plaintiff without either consent, an arrest warrant, a search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime unlawfully arrested plaintiff.

14. Prior to plaintiff's arrest, her boyfriend was driving her home. While on her way home, plaintiff stopped to purchase food for her dog.

15. After plaintiff's boyfriend parked in front of a store where plaintiff intended to purchase food for her dog, defendants P. O. Hector Justinico and P. O. David Mercado pulled behind the vehicle of plaintiff's boyfriend and turned on flashing police lights.

16. Defendants exited their vehicle and approached plaintiff's boyfriend's vehicle.

17. Plaintiff's boyfriend provided his license and registration upon request of the defendant police officers.

18. Defendants ordered plaintiff and plaintiff's boyfriend out of their vehicle.

19. Defendants patted down plaintiff and her boyfriend, recovering no contraband from plaintiff or plaintiff's boyfriend.

20. Defendants searched plaintiff's boyfriend vehicle and retrieved pills from a pill bottle inside of a plastic bag.

21. Plaintiff confirmed that the plastic bag and pills belonged to her. Plaintiff told the defendants that the pills were Tylenol.

22. Defendants arrested, handcuffed, transported plaintiff to the 79th Precinct for arrest processing, and arraigned in Brooklyn Criminal Court.

23. Plaintiff was charged with Penal Law 220.16 criminal possession of a controlled substance in the third degree and Penal Law 220.03 criminal possession of a controlled substance in the seventh degree.

24. Plaintiff did not possess any controlled substance constructively or otherwise.

25. Plaintiff's case was dismissed after a laboratory analysis confirmed that plaintiff did not possess a controlled substance.

GENERAL ALLEGATIONS

26. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

27. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

28. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

29. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of her rights.

30. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, loss of liberty, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

31. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM FOR RELIEF

(For Unlawful Search Under New York Constitution Against the City of New York, P. O. Hector Justinico, and P.O. David Mercado)

32. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

33. Defendants P. O. Hector Justinico and P. O. David Mercado unlawfully searched plaintiff's bag without a warrant, probable cause, or consent.

34. Accordingly, defendants are liable to plaintiff for defendants' unlawful search under the New York State Constitution Article I, § 12.

SECOND CLAIM FOR RELIEF

(For Unlawful Seizure Under New York Constitution Against the City of New York, P. O. Hector Justinico, and P. O. David Mercado)

35. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

36. Defendants P. O. Hector Justinico and P. O. David Mercado unlawfully seized plaintiff without a warrant, probable cause, or consent.

37. Accordingly, Defendants are liable to plaintiff for defendants' unlawful search under the New York State Constitution Article I, § 12.

THIRD CLAIM FOR RELIEF

(For Intentional Infliction of Emotional Distress Against the City of New York, P. O. Hector Justinico, and P. O. David Mercado)

38. Plaintiff incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

39. Defendants City of New York, P. O. Hector Justinico, and P. O. David Mercado, intentionally inflicted emotional harm upon the plaintiff.

40. The defendants' actions against the plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

41. Defendants the City of New York, P. O. Hector Justinico, and P. O. David Mercado breached a duty owed to plaintiff that either unreasonably endangered plaintiff's physical safety, or caused plaintiff to fear for her own safety.

42. Accordingly the City of New York, P. O. Hector Justinico, and P. O. David Mercado under New York state law for intentional infliction of emotional distress upon plaintiff.

FOURTH CLAIM FOR RELIEF

(For Malicious Prosecution Against the City of New York, P. O. Hector Justinico, and P. O. David Mercado)

43. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

44. Defendants initiated, commenced and continued a malicious prosecution against plaintiff.

45. Defendants caused plaintiff to be prosecuted without any probable cause until the charges were dismissed on or about May 7, 2015.

46. By virtue of the foregoing, the Individual Officer Defendants maliciously prosecuted plaintiff in violation of the laws of the State of New York.

FIFTH CLAIM FOR RELIEF

(For False Arrest under State Law Against the City of New York, P. O. Hector Justinico, and P. O. David Mercado)

47. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

48. As a result of defendants' aforementioned conduct, the plaintiff was subjected to an illegal, improper, and false arrest. The plaintiff was taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated. In the above-mentioned actions, defendants acted intentionally, willfully, with malice, and without probable cause, privilege or consent.

49. Plaintiff was conscious of her confinement.

50. As a result of the foregoing, plaintiff's liberty was restricted in filthy and degrading conditions for an extended period of time, plaintiff was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

51. By virtue of the foregoing, the defendants deprived the plaintiff of her rights under the law of the State of New York.

SIXTH CLAIM FOR RELIEF

(For Respondeat Superior Against the City of New York)

52. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

53. The individual defendants, P. O. Hector Justinico, and P. O. David Mercado, were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff.

54. Accordingly, the City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

SEVENTH CLAIM FOR RELIEF

*42 U.S.C. § 1983 - Fourth and Fourteenth Amendment Violation
for False Arrest*

(Against the Individual Officer Defendants)

55. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

56. As a result of defendants' aforementioned conduct, the plaintiff was subjected to an illegal, improper, and false arrest. The plaintiff was taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated. In the above-mentioned actions, defendants acted intentionally, willfully, with malice, and without probable cause, privilege or consent.

57. Plaintiff was conscious of her confinement.

58. As a result of the foregoing, plaintiff's liberty was restricted in filthy and degrading conditions for an extended period of time, plaintiff was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

59. By virtue of the foregoing, the defendants deprived the plaintiff of her Fourth Amendment rights under the United States Constitution to be free from unreasonable seizures of her person and are liable to plaintiff under 42 U.S.C. §1983.

EIGHT CLAIM FOR RELIEF

*42 U.S.C. § 1983- Fifth and Fourteenth Amendment Violations for Fabrication of Evidence
(Against the Individual Officer Defendants)*

60. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

61. The defendants created false evidence against the plaintiff and drafted or signed sworn criminal complaints and false police reports.

62. The defendants forwarded to prosecutors fabricated and false evidence that was likely to influence a jury's decision.

63. The defendants knowingly and intentionally provided false evidence against plaintiff in legal proceedings.

64. By virtue of the foregoing, the defendants deprived the plaintiff of her Fifth and Fourteenth Amendment rights under the United States Constitution to due process and to a fair trial and are liable to plaintiff under 42 U.S.C. §1983.

NINTH CLAIM FOR RELIEF

*Municipal Liability
(Against Defendant City)*

65. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

66. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeated misconduct by the same officers, same units, and same precincts. In the fiscal year of 2012, there were 2,004 tort cases commenced against the New York City Police Department, up from 1,425 tort cases commenced for the fiscal year of 2008.¹ The City of New York has paid at least \$80 million for torts against the New York City Police Department since the fiscal year of 2008, peaking in fiscal year of 2009 when it paid out more than \$117 million.¹ In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.²

67. The widely held assumption is that civil rights lawsuits deter police misconduct. "The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails." Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Phipps, 435 U.S. 247, 254-257, (1978). "As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts." See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61,

¹ Fiscal 2013 Preliminary Mayor's Management Report for the New York City Police Department, available at www.nyc.gov/html/ops/downloads/pdf/mmr0912/nypd.pdf, see page 5, last visited on January 24, 2014.

² "NYPD gives quite the payday; AP report reveals police have doled out \$1B to resolve lawsuits," by Associated Press Writers Colleen Long and Jennifer Peltz via Daily News wire Report, <http://www.nydailynews.com/new-york/nypd-payday-ap-report-reveals-police-dolled-1b-resolve-lawsuits-article-1.189671>, October 15, 2010 last visited on January 27, 2014.

70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

68. However, the City of New York has isolated NYPD officers like defendant police officers from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and police department action against officers.³ This “total disconnect” between officers’ liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability.

69. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed

³ Bob Hennelly’s WNYC report, “Amid City Budget Crisis, New Scrutiny on Millions in NYPD Settlements” from June 8, 2011: <http://www.wnyc.org/articles/its-free-country/2011/jun/08/amid-city-budget-grappling-new-scrutiny-millions-nypd-settlements/>, last visited on January 27, 2014.

to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

70. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the same division, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations of excessive force and false arrest suffered by the plaintiff.

71. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

72. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong

disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged." See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.) (Weinstein, J.).

73. In Floyd v. City of New York, 08-cv-01034-SAS-HBP, Judge Scheindlin found that the City acted with "deliberate indifference toward the NYPD's practice of making unconstitutional stops and conducting unconstitutional frisks" and adopted "a policy of indirect racial profiling by targeting racially defined groups for stops based on local crime suspect data." (Opinion and Order, dated August 12, 2013, P.13).

74. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff's civil rights, without fear of reprisal.

75. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

WHEREFORE, Plaintiff demands a jury trial and judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action.

Dated: New York, New York
June 3, 2016



Steven E. Lynch, Esq.

Attorney for Plaintiff

The Law Offices of Steven E. Lynch

233 Fifth Avenue, Suite 4A

New York, New York 10016

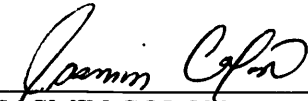
(Tel.) (718) 858-8737

(Fax) (718) 690-3593

steven@stevenelynych.com

VERIFICATION

I, JASMIN COLON, state under the oath, that I am the deponent and plaintiff in this action, and that the pleading is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.



JASMIN COLON

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 3rd day of June, 2016, before me personally came and appeared JASMIN COLON to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

STEVEN E. LYNCH
NOTARY PUBLIC, State of New York
No. 02LY8261890
Qualified in Kings County
Commission Expires May 28, 2018 '20